IT is hereby notified, in terms of section 80 of the Labour Act [*Chapter 28:01*] ("the Act" hereinafter), that the Minister of Public Service, Labour and Social Welfare has approved the publication of the Collective Bargaining Agreement set out in the Schedule.

The agreement has been registered in terms of section 79 of the Act.

SCHEDULE

EMPLOYMENT COUNCIL FOR HARARE MUNICIPALITY
COLLECTIVE BARGAINING AGREEMENT

Further Agreement

It is hereby agreed that the parties to the above arbitration agreement have entered into an agreement in accordance with the provisions of the Employment Council for Harare Municipality Constitution (herein referred to as the " Constitution") which binds the Harare Municipality, of the one part and the employee party, represented by the Harare Municipal Workers Union (HMWU), the Zimbabwe Urban Councils Workers Union (ZUCWU), (Harare Branch), the Water and Allied Workers Union of Zimbabwe (WAWUZ) and the Zimbabwe Allied Municipal Workers Union (ZAMWU), of the other part, being parties to the Employment Council for the Harare Municipal Undertaking.

1. Where the above parties were in negotiations reached a deadlock and agreed to refer the matters for voluntary arbitration in terms of item 17.2 of the Employment Council Constitution. Following the arbitration , parties hereby agree to regularise the awards which were awarded.

2. Issues:

2.1. basic salary for the period January to December, 2019;

2.2. hygienic allowance, ie education, electricity, transport, and housing;

2.3. hardship allowance.

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3. The following positions were awarded and hereby being regularised as follows —

(i) basic salary: Every employee in grades that fall within the National Employment Council for the Harare Municipal Undertaking shall effective 1st of January, 2018, receive an increase on their basic wage of 6%;

(ii) Allowances: Allowances currently paid namely: electricity, transport, housing and education shall remain the same;

(iii) hardship allowances: Every employee in Grades 5 to 16 is awarded a hardship of ZWL$125,00, across the board from January, 2019 to the date of conclusion of the 2019 wages and allowances Collective Bargaining negotiations for the undertaking of Harare Municipal provided any amount awarded to each employee in terms of this award shall be offset against the increase to the employee's basic salary, if any, in terms of the collective bargaining agreement for the Harare Municipal Undertaking, 2019:

Provided that where the amount of increment to the basic wage is less than the amount granted in terms of this award, the greater the amount shall take precedence.

4. That this agreement shall take effect after its adoption by Council on Thursday 5th of September, 2019.

Declaration

The Harare Municipality and the employees as represented by the trade unions i.e (HMWU, ZUCWU, WAWUZ and ZAMWU), having reached agreement set forth herein, and the undersigned hereby declare that the foregoing is the agreement arrived at and affix their signatures thereto.

Signed at Harare on this 6th day of December, 2019.

Cllr. J. MAFUME,
Employer Party Chairman,
for and on behalf of Harare Municipality.

Rtd. MAJOR M. MARARA,
Acting Human Capital Director,
for and on behalf of Harare Municipality.

Cllr. G. MANDERE,
Employer Party Representative,
for and on behalf of Harare Municipality.

Cllr. S. MAPANZURE,
Employer Party Representative,
for and on behalf of Harare Municipality.

C. BUNGU,
Employee Party Chairperson,
for and on behalf of Harare Municipal Workers Union.

D. USINGARAWE,
Employee Party Representative,
for and on behalf of Zimbabwe Urban Councils Workers Union.

K. CHIVUZHE,
Employee Party Representative,
for and on behalf of Water and Allied Workers Union of,
Zimbabwe.

T. MURAMBATSVINA,
Employee Party Representative,
for and on behalf of Zimbabwe Allied Municipalities Workers,
Union.

R. MATSIKIDZE,
Employment Council for the Harare Municipal Undertaking,
Chairman,

R. KATSANDE,
Employment Council for the Harare Municipal Undertaking
Secretary General